

SENATE FLOOR VERSION

April 13, 2026

ENGROSSED HOUSE
BILL NO. 4108

By: Ford of the House

and

Rader of the Senate

An Act relating to airports; amending 21 O.S. 2021, Section 1792, as amended by Section 699, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1792), which relates to trespassing on property containing critical infrastructure; expanding scope of crime to include airports; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1792, as amended by Section 699, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1792), is amended to read as follows:

Section 1792. A. Any person who shall willfully trespass or enter property containing a critical infrastructure facility without permission by the owner of the property or lawful occupant thereof shall, upon conviction, be guilty of a misdemeanor punishable by a fine of not less than One Thousand Dollars (\$1,000.00), or by imprisonment in the county jail for a term of six (6) months, or by both such fine and imprisonment. If it is determined the intent of the trespasser is to willfully damage, destroy, vandalize, deface,

1 | tamper with equipment, or impede or inhibit operations of the
2 | facility, the person shall, upon conviction, be guilty of a Class D3
3 | felony offense punishable by a fine of not less than Ten Thousand
4 | Dollars (\$10,000.00), or by imprisonment as provided for in
5 | subsections B through F of Section 20P of this title, or by both
6 | such fine and imprisonment.

7 | B. Any person who shall willfully damage, destroy, vandalize,
8 | deface or tamper with equipment in a critical infrastructure
9 | facility shall, upon conviction, be guilty of a Class D3 felony
10 | offense punishable by a fine of One Hundred Thousand Dollars
11 | (\$100,000.00), or by imprisonment in the custody of the Department
12 | of Corrections for a term of not more than ten (10) years, or by
13 | both such fine and imprisonment.

14 | C. If an organization is found to be a conspirator with persons
15 | who are found to have committed any of the crimes described in
16 | subsection A or B of this section, the conspiring organization shall
17 | be punished by a fine that is ten times the amount of said fine
18 | authorized by the appropriate provision of this section.

19 | D. As used in this section, "critical infrastructure facility"
20 | means:

21 | 1. One of the following, if completely enclosed by a fence or
22 | other physical barrier that is obviously designed to exclude
23 | intruders, or if clearly marked with a sign or signs that are posted
24 | on the property that are reasonably likely to come to the attention

1 of intruders and indicate that entry is forbidden without site
2 authorization:

- 3 a. a petroleum or alumina refinery,
- 4 b. an electrical power generating facility, substation,
5 switching station, electrical control center or
6 electric power lines and associated equipment
7 infrastructure,
- 8 c. a chemical, polymer or rubber manufacturing facility,
- 9 d. a water intake structure, water treatment facility,
10 wastewater treatment plant or pump station,
- 11 e. a natural gas compressor station,
- 12 f. a liquid natural gas terminal or storage facility,
- 13 g. a telecommunications central switching office,
- 14 h. wireless telecommunications infrastructure, including
15 cell towers, telephone poles and lines, including
16 fiber optic lines,
- 17 i. a port, railroad switching yard, railroad tracks,
18 trucking terminal or other freight transportation
19 facility,
- 20 j. a gas processing plant, including a plant used in the
21 processing, treatment or fractionation of natural gas
22 or natural gas liquids,
- 23 k. a transmission facility used by a federally licensed
24 radio or television station,

- 1 l. a steelmaking facility that uses an electric arc
2 furnace to make steel,
- 3 m. a facility identified and regulated by the United
4 States Department of Homeland Security Chemical
5 Facility Anti-Terrorism Standards (CFATS) program,
- 6 n. a dam that is regulated by the state or federal
7 government,
- 8 o. a natural gas distribution utility facility including,
9 but not limited to, pipeline interconnections, a city
10 gate or town border station, metering station,
11 aboveground piping, a regulator station and a natural
12 gas storage facility, ~~or~~
- 13 p. a crude oil or refined products storage and
14 distribution facility including, but not limited to,
15 valve sites, pipeline interconnections, pump station,
16 metering station, below or aboveground pipeline or
17 piping and truck loading or offloading facility, or
- 18 q. the operational area of an airport including runways,
19 taxiways, ramps, apron areas, aircraft parking and
20 storage areas, fuel storage areas, maintenances areas,
21 and any other area of an airport used or intended to
22 be used for landing, takeoff, or surface maneuvering
23 of aircraft; or
- 24

1 2. Any aboveground portion of an oil, gas, hazardous liquid or
2 chemical pipeline, tank, railroad facility or other storage facility
3 that is enclosed by a fence, other physical barrier or is clearly
4 marked with signs prohibiting trespassing, that are obviously
5 designed to exclude intruders.

6 SECTION 2. This act shall become effective November 1, 2026.

7 COMMITTEE REPORT BY: COMMITTEE ON AERONAUTICS AND TRANSPORTATION
8 April 13, 2026 - DO PASS
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24